

26STLC02476 26STLC02476

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STLC02476 Hearing Date: August 12, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff CF Ascent II Trust's Motion for Judgment on the Pleadings is granted.

The proposed judgment filed on 07/06/2026 is signed and entered this date.

Analysis:

On April 13, 2026, Plaintiff CF Ascent II Trust ("Plaintiff") filed the Complaint in this action against Defendant Jose Villalobos ("Defendant"). Defendant filed an Answer to the Complaint, in propria persona, on May 22, 2026.

On July 6, 2026, Plaintiff filed the instant Motion for Judgment on the Pleadings. The Motion was served on Defendant by first-class mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff moves for judgment on the pleadings, the standard for which is essentially the same as that applicable to a general demurrer. That is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.

(Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322,

citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.)

The motion may not be supported by extrinsic evidence. (*Barker v. Hull* (1987) 191 Cal.App.3d 221, 236.)

A statutory motion for judgment on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 439 [moving party must file declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed].)

The Motion is supported by a meet and confer declaration. (Motion, D'Anna Decl., Exh. 1.)

Substantively, the Motion is brought on the grounds that the Answer fails to allege sufficient facts to raise any defense to the Complaint for breach of contract. The elements of a cause of action for breach of contract are (1) the existence of contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach (or anticipatory breach); and (4) resulting damage. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

The Complaint alleges that Defendant breached a loan agreement entered into with Plaintiff's assignor, thereby causing Plaintiff to incur damages of \$26,502.72, plus costs to which it has a contractual right under paragraph 5c of the loan agreement. (Compl., ¶¶ 1, 6-10, 15-26 and Exhs. A-C.) The Answer admits the material allegations of the Complaint and only alleges facts regarding Defendant's financial hardship. (Answer, ¶¶ 3b, 6c.) The Answer does not deny the material allegations in the Complaint that support the cause of action for breach of contract. Based on Defendant's admission of fault in the Answer and the lack of any opposition to the instant Motion, the Court finds that Plaintiff is entitled to judgment on the pleadings.

Conclusion

Plaintiff CF Ascent II Trust's Motion for Judgment on the Pleadings is granted.

The proposed judgment filed on 07/06/2026 is signed and entered this date.

Moving party to give notice.